

MBA 1st Semester Examination, 2019

BUSINESS LEGISLATION

PAPER – MBA-105

Full Marks : 100

Time : 3 hours

The figures in the right hand margin indicate marks

Candidates are required to give their answers in their own words as far as practicable

Illustrate the answers wherever necessary

GROUP—A

Answer any **eight** questions : 2 × 8

1. Define offer. State rules regarding offer.
2. What is supervening Impossibility. State its effect in contract.
3. State types of breach of contract with examples.

(Turn Over)

4. Who is called as a partner according to the Indian Partnership Act.
5. What are the pecuniary adjudication powers of Consumer Disputes Redressal Forum and Consumer Disputes Redrassal Commission (State Commission).
6. Define Deficiency as per Consumer Protection Act.
7. What are types of goods in sale of goods Act.
8. What are the differences of sale and agreement ot sell.
9. Who is called as an 'aggrived Person' as per Protection of Women from Domestic Violence Act.
10. Can a minor become a partner of a partnership business.

11. How much minimum paid up capital and members are required to form a private company as per Companies Act.
12. What are the implied conditions and warranties in case of sale of goods.

GROUP-B

Answer any **eight** questions : 4 × 8

13. Discuss the position of a minor in Indian Contract Act.
14. Discuss cases of transfer of ownership in case of sale by won owners.
15. Define goodwill. Is goodwill an asset in a Partnership Firm ?
16. Write about Government Company as per Companies Act.

17. Discuss the remedies available in case of breach of contract.
18. What is meant by consent ? When it is said to be free ?
19. How a consumer can file a complaint before The District Consumer Disputes Redressal Forum.
20. What do you mean by share as per Companies Act.
21. Under what Circumstances of Court can pass a maintenance order to a person under protection of women from Domestic Violence Act.
22. What is Caveat Emptor—Discuss the rules.
23. What is Higher purchase agreement. Discuss the rules of such agreement of sale.
24. Write about Prospectus as per Companies Act.

GROUP—C

Answer any **four** questions : 8 × 4

25. Write in detail about memorandum of Association as per Companies Act.
26. Define Consideration. State exception to the general rule "no consideration no contract".
27. Is it compulsory to register a Partnership Firm ? What the benefits a Partnership Firm get if it is a registered one.
28. What is an unpaid seller ? What are the remedies of an unpaid seller.
29. Write about Residence orders and Custody orders as per protection of women from Domestic Violence Act.
30. Who has right to get information and from whom such information is available ? Define Public Authority.

[Internal Assessment—20 Marks]